

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4038

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

COMMITTEE SUBSTITUTE

An Act relating to transportation; requiring that portions of funds be used for certain purposes; providing budgeting and expenditure limitations and procedures; providing for lapse of funds under certain conditions; making an appropriation; determining purpose of funds appropriated; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

Of the funds appropriated to the Department of Transportation in Section 67 of Enrolled Senate Bill No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the sum of Five Million Dollars (\$5,000,000.00) shall, under the direction of the Executive

1 Director, be dedicated to funding projects on the 8-Year
2 Construction Work Plan.

3 SECTION 2. Appropriations made by this act, not including
4 appropriations made for capital outlay purposes, may be budgeted for
5 the fiscal year ending June 30, 2027 (hereafter FY-27), or may be
6 budgeted for the fiscal year ending June 30, 2028 (hereafter FY-28).
7 Funds budgeted for FY-27 may be encumbered only through June 30,
8 2027, and must be expended by November 15, 2027. Any funds
9 remaining after November 15, 2027, and not budgeted for FY-28, shall
10 lapse to the credit of the proper fund for the then current fiscal
11 year. Funds budgeted for FY-28 may be encumbered only through June
12 30, 2028. Any funds remaining after November 15, 2028, shall lapse
13 to the credit of the proper fund for the then current fiscal year.
14 These appropriations may not be budgeted in both fiscal years
15 simultaneously. Funds budgeted in FY-27, and not required to pay
16 obligations for that fiscal year, may be budgeted for FY-28, after
17 the agency to which the funds have been appropriated has prepared
18 and submitted a budget work program revision removing these funds
19 from the FY-27 budget work program and after such revision has been
20 approved by the Office of Management and Enterprise Services.

21 SECTION 3. NEW LAW A new section of law not to be
22 codified in the Oklahoma Statutes reads as follows:

23 There is hereby appropriated to the Department of Transportation
24 from any monies not otherwise appropriated from the General Revenue

1 Fund of the State Treasury for the fiscal year ending June 30, 2027,
2 the sum of Two Hundred Sixty-six Thousand Dollars (\$266,000.00) or
3 so much thereof as may be necessary to perform the duties imposed
4 upon the Department of Transportation by law.

5 SECTION 4. NEW LAW A new section of law not to be
6 codified in the Oklahoma Statutes reads as follows:

7 Funds appropriated by Section 3 of this act shall be utilized as
8 follows:

9 Two Hundred Sixty-six Thousand Dollars (\$266,000.00) to
10 implement the provisions of Enrolled House Bill No. 2979 of the 2nd
11 Session of the 60th Oklahoma Legislature.

12 SECTION 5. This act shall become effective July 1, 2026.

13 SECTION 6. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

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